

STATE OF NEW YORK

7392--A

2025-2026 Regular Sessions

IN SENATE

April 14, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to the sale of salvaged airbags; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (e) of subdivision 6 of section 398-d of the
2 vehicle and traffic law, as amended by chapter 78 of the laws of 1998,
3 is amended to read as follows:

4 (e) [~~On and after March first, nineteen hundred ninety nine, in~~] In no
5 case shall any inflatable restraint system be replaced with anything
6 other than a newly manufactured inflatable restraint system or [~~a~~
7 ~~salvaged inflatable restraint system certified according to standards~~
8 ~~established by a nationally recognized testing, engineering and research~~
9 ~~body as provided for in subdivision two of~~] an original equipment non-
10 deployed recycled airbag in compliance with section four hundred
11 fifteen-c of this chapter.

12 § 2. Section 415-c of the vehicle and traffic law is REPEALED and a
13 new section 415-c is added to read as follows:

14 § 415-c. Sale of original equipment non-deployed recycled airbags. 1.
15 Any recycled airbag offered for sale shall be non-deployed original
16 equipment removed from a salvaged vehicle, and installed in another
17 vehicle for which it is a correct replacement part.

18 2. A non-deployed recycled airbag that is under an active manufacturer
19 recall, comes from a flood vehicle as indicated on an official salvage
20 examination and title application form prescribed by the commissioner,
21 or that does not have an identifiable serial number, shall not be
22 offered for sale.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 3. Prior to sale, a provider of non-deployed recycled airbags shall
2 conduct an inspection of such airbags, which shall include, but not be
3 limited to:

4 (a) The vehicle identification number, and airbag trim color of the
5 vehicle that the non-deployed recycled airbag was removed from; and

6 (b) A visual inspection of the airbag, the airbag system, the airbag
7 module cover, and electrical connectors, including review for any signs
8 of damage or contamination.

9 4. Upon the sale of a non-deployed recycled airbag, the provider
10 shall provide the buyer with a written certification of the following
11 information:

12 (a) the identity of the person or entity selling the non-deployed
13 recycled airbag;

14 (b) the vehicle identification number of the vehicle receiving the
15 non-deployed recycled airbag;

16 (c) the vehicle identification number of the vehicle that the non-de-
17 ployed recycled airbag was removed from;

18 (d) the supplier's internal stock number for the non-deployed recycled
19 airbag;

20 (e) that the non-deployed recycled airbag is an appropriate part for
21 the vehicle receiving the non-deployed recycled airbag;

22 (f) that all of the requirements of the inspection as prescribed in
23 subdivision three of this section have been met; and

24 (g) that the vehicle identification number of the vehicle from which
25 the salvaged inflatable restraint system was taken shall be referred to
26 a nationally recognized theft index bureau approved by the commissioner,
27 in consultation with the superintendent of financial services, for the
28 purposes of determining prior to sale that neither the salvaged inflata-
29 ble restraint system nor the motor vehicle were stolen, as determined at
30 the time of inquiry. The sales invoice shall state the date and the
31 result of the inquiry to such theft index bureau.

32 5. A non-deployed recycled airbag shall only be offered for sale by a
33 vehicle dismantler that is registered pursuant to section four hundred
34 fifteen-a of this article.

35 6. Each vehicle dismantler that offers such original equipment non-de-
36 ployed recycled airbags for sale shall maintain an electronic log
37 containing all information outlined under subdivisions two, three and
38 four of this section. Such records shall be maintained in a manner and
39 form approved by the commissioner. Upon request of an agent of the
40 commissioner or of any police officer and during its regular and usual
41 business hours, the vehicle dismantler shall produce such records and
42 permit said agent or police officer to examine them.

43 § 3. This act shall take effect on the one hundred eightieth day after
44 it shall have become a law.